

Form No.HCJD/C-121

**ORDER SHEET**

**LAHORE HIGH COURT, LAHORE**

**JUDICIAL DEPARTMENT**

**Crl. Misc. No.15084-B/2025.**

**Shahbaz Mustafa and another.        Vs.        The State and another.**

| S.No. of order/<br>Proceeding | Date of order/<br>proceeding | Order with signature of Judge and that of parties or counsel,<br>where necessary |
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**14.04.2025.**        Mr. Muhammad Imran Chaudhary, Advocate for the petitioners.  
Mr. Amjad Javed, Deputy Prosecutor General along with Asif, A.S.I.  
Shahid Abbas-complainant in person.

Petitioners (Shahbaz Mustafa and Muhammad Mushtaq) have sought their post-arrest bail in case bearing FIR No.2050/2024, dated 29.10.2024, for offences under Sections 392 and 411 PPC, registered with Police Station Defence-A, District Lahore, after refusal of the same by the Court of learned Additional Sessions Judge, Lahore vide order dated 26.02.2024.

2.        According to F.I.R., on 29.10.2024 at about 04:20 P.M. Shahid Abbas (complainant) was carrying cash of Rs.55,00,000/- from Meezan Bank, Cavalry Ground Branch, Cantt Lahore on a motorcycle and moving towards the office of his company. When he was at a small distance from the main gate of the company, two unknown culprits emerged there from the back on a motorcycle Honda 125. They aimed pistol towards the complainant and snatched bag having cash from complainant and fled away from the scene.

3.        After hearing learned counsel for petitioner, learned Deputy Prosecutor General and perusal of the file it was observed by me that petitioners were not named in the F.I.R. They were already lying the jail,

where they were interrogated on 15.11.2024 regarding the present occurrence. They were found to be involved in the present case. Shahbaz Mustafa (petitioner) led to the recovery of cash of Rs.30,00,000/- on 15.11.2024, whereas Muhammad Mushtaq (petitioner) got recovered cash of Rs.18,00,000/- in toto. They were found to be prima facie connected with the crime on the basis of material collected by the Investigating Officer. Their involvement could not be dislodged. There was nothing on the record to suggest that the case was requiring further inquiry.

4. Learned counsel for petitioner placed reliance on 'Abdul Hadi alias babal and two others v. The State' (2024 P.Cr.LJ 1521) 'Allah Bakhsh alias Butt v. The State' (2009 YLR 1831) 'Nadeem v. The State and others' (PLD 2012 Lahore 415) and claimed that since no identification parade was held in the present case, as such petitioners were entitled to be enlarged on bail.

5. According to the dictums laid down by Honourable Superior Courts holding of identification parade is not a legal requirement in each and every case. Any fact in any form, which establishes the identity of accused is relevant under Article 22 of Qanun-e-Shahadat. In the case in hand accused/petitioners were visible on CCTV camera recorded clips. The said piece of evidence was admissible under Article 22 of Qanun-e-Shahadat. It was also to be considered under Article 164 of Qanun-e-Shahadat Order being an evidence through modern device subject to its genuineness and authenticity. In my humble view there was no need of holding of identification parade in the present case in the light of

availability of said piece of evidence. Above precedents judgments relied upon by learned counsel for the petitioners were having distinctive features, hence, were not applicable to the present case.

6. Circumstances of the case presented a dreadful picture. Moreover, Shahbaz Mustafa (petitioner) was having previous involvement in twenty one cases of similar nature, whereas fifteen cases of similar nature were pending against Mushtaq Ahmad (petitioner). They found to be history sheeters and criminals with flags. I, therefore, do not think it appropriate to exercise my discretion in favour of the petitioners.

7. In sequel to above discussion, this petition has no force, hence, **dismissed**.

**(Tanveer Ahmad Sheikh)**  
**Judge**

**Approved for reporting.**

**Judge**